MEMORY NYAKABAU
versus
CYRIL NYAKABAU

HIGH COURT OF ZIMBABWE
MAXWELL J
HARARE 11 March 2026 & 19 March 2026

Civil Trial- Divorce

J T Sande Chimombe, for the Plaintiff
C Muzhanye with L Mauwa, for the Defendant

MAXWELL J:

Background

The parties were married in terms of the Marriage Act [*Chapter 5:11*], now known as the Marriages Act [*Chapter 5:17*]. Their union was blessed with two children who are now adults. On July 8, 2024, the plaintiff filed summons claiming a decree of divorce and ancillary relief. In her declaration, she stated that the marriage has irretrievably broken down to such an extent that there are no reasonable prospects for reconciliation. She also mentioned that during the marriage, the parties acquired immovable assets. She proposed a distribution plan and requested that each party bear its own costs.

The defendant filed his appearance to defend. In his plea, he stated that the plaintiff deliberately failed to mention a property known as 34 Albourne Crescent, Ravenswood, Ipswich IP 39 GD, England. He also proposed a distribution plan for the properties. He agreed to the granting of the divorce.

Joint Pre-Trial Conference

A Joint Pre-trial conference was held. The parties agreed that the plaintiff be awarded Stand Number 15 Christ Church Gardens, 945 Strathaven, Harare and that the defendant be awarded Stand Number 5552 Platinum Prince, Zimre Park, Ruwa. The following issues were referred to trial;

1. What is the fair and equitable distribution of House Number 3B Stand 1965 Bluffhill, Harare and House Number 34 Albourne Crescent, IP3 9 GD United Kingdom.

2. Whether or not the rentals collected from Stand Number 15, Christ Church Gardens, 945 Strathaven, Harare, from the 24th of September 2025 to the finalization of the matter should be awarded to the Plaintiff.

Trial

Plaintiff's Case

The plaintiff testified that during the subsistence of the marriage, the parties acquired the following immovable properties:

1. House Number 3B, Stand 1965, Bluffhill, Harare
2. House Number 34, Albourne Crescent, IP3 9GD, United Kingdom
3. Flat 15, Christ Church Gardens, 945 Strathaven, Harare
4. Stand Number 5552, Platinum Street, Zimre Park, Ruwa

She stated that at the pre-trial conference, the parties reached an agreement that she would retain the Strathaven property, while the defendant would retain the Zimre Park property. Furthermore, they agreed that each party would hold a fifty percent (50%) share in the property situated at 34 Albourne Crescent, Ravenswood, Ipswich, IP3 9GD, England.

The plaintiff testified that in 2006, the defendant relocated to Dubai and ceased providing financial assistance to the family. Consequently, she consulted a mortgage advisor and was advised to obtain a mortgage facility, which she did, and thereafter paid interest on the loan. She referred to a mortgage statement reflecting payments made, interest accrued, and the outstanding balance. In 2008, while unwell, she continued residing in the mortgaged property and paid interest only. In 2022, she paid USD $8,000 under a rent-to-buy arrangement. She subsequently rented out the property, but due to damage caused by tenants, she resumed occupation. She emphasized that the mortgage remains substantial and that there is confusion regarding the United Kingdom property, as the defendant believed the mortgage had been discharged, whereas it remains active with a significant outstanding balance and high interest.

The plaintiff asserted that she does not own the United Kingdom property outright, but rather acquired it as a means to provide for the children in the absence of the defendant's support. She testified that she has been the sole caregiver for the children for over fifteen to twenty years. She further noted that the defendant once instituted divorce proceedings in 2005 but abandoned them midway. She stated that the Zimre Park property was the marital

home in Zimbabwe and is registered in both parties' names. The property comprises a self-contained cottage and a main house with six rooms. The Strathaven property is registered in the defendant's name and consists of a two-bedroom flat, while the Bluffhill property is a three-bedroom double-storey house. She testified that she is unaware of the current occupancy status of the Zimre Park property, though it previously generated rental income of USD $250 per month. The Strathaven property yields USD $600 per month in rentals, while the Bluffhill property generates USD $450 per month, of which USD $50 is allocated to rates.

The plaintiff further testified that after the pre-trial conference, she visited the tenants at the Strathaven property to explain the property's legal status. Subsequently, she was served with a peace order prohibiting her from contacting the tenants, which she has complied with. She stated that she obtained a loan from Barclays Bank, which she contributed towards the Bluffhill property, and that she also purchased cement for its construction. She therefore claims entitlement to a fifty percent (50%) share in the Bluffhill property.

Under cross-examination, the plaintiff confirmed that she used to travel with the children to Durban to meet the defendant. She acknowledged that the parties had previously separated but reconciled in 2006. She averred that the Bluffhill property was acquired in 2002 and completed in 2003, but was registered solely in the defendant's name despite being a joint effort. She further stated that she has never received rental income from the Strathaven property.

Defendant's Case

The defendant was the sole witness in his case. He testified that the plaintiff is his wife. He stated that Stand Number 5552, Platinum Street, Zimre Park, Ruwa was acquired in 2001, and that a two-bedroomed cottage was constructed before the parties' relocation to the United Kingdom. He averred that the construction of the main house commenced in 2002–2003 while he was employed in Saudi Arabia, and that he solely financed the construction.

The defendant further testified that he solely purchased House Number 3B, Stand 1965, Bluffhill, Harare in 2002–2003, and that he also solely purchased Flat 15, Christ Church Gardens, 945 Strathaven, Harare, around 2015. He alleged that the plaintiff did not contribute to the acquisition of these three properties. He acknowledged that the plaintiff once gave him 2 000 pounds but stated that she took a motor vehicle he had purchased as reimbursement for that sum.

He denied involvement in the acquisition of the United Kingdom property, asserting that the plaintiff is its sole owner and that he has no access to it. He further stated that the Strathaven property was acquired during a period of separation from the plaintiff. He confirmed that the plaintiff used to visit him with the children in Durban. He expressed his desire to retain both the Strathaven and Zimre Park properties, while suggesting that the plaintiff should retain the United Kingdom property. He agreed to share the Bluffhill property equally with the plaintiff. He denied any basis for the plaintiff's claim to rentals from the Strathaven property from September 2025 to date.

Under cross-examination, the defendant maintained that he solely financed the acquisition of all properties except the United Kingdom property. However, he conceded that the Ruwa property is jointly owned and acknowledged that the plaintiff contributed directly and indirectly to the acquisition of the properties. He admitted that the plaintiff collects rentals from the Bluffhill property for the benefit of the children. At the conclusion of cross-examination, he agreed to give the plaintiff a fifty percent (50%) share in the Bluffhill property. Under re-examination, he clarified that his offer of a 50% share was intended as fair compensation to the plaintiff, having regard to the existence of the marriage.

Closing Submissions

Counsel for the plaintiff submitted that the defendant had conceded to granting the plaintiff a fifty percent (50%) share in the Bluffhill property, and that this concession should be binding. Counsel emphasized that the defendant's acknowledgment of the plaintiff's contributions, both direct and indirect, supports her entitlement to a share in the matrimonial assets.

Counsel for the defendant, however, contended that the defendant's statement was not intended as an outright concession of ownership but rather as a compromise proposal. It was submitted that the defendant meant that he could retain the Strathaven property and then share the Bluffhill property with the plaintiff. Counsel for the defendant objected to what he described as a redefinition of the issues for trial by the plaintiff's counsel, arguing that such changes should have been formally notified. Counsel for the plaintiff responded that the defendant's counsel could not alter the issues on behalf of the client, and that the two issues referred to trial remained as originally framed, with the defendant having agreed to the first issue.

Analysis

The law relating to sharing of assets of the spouses is set out in section 7 of the Matrimonial Causes Act [*Chapter 5:13*]. The provision empowers the court to make such orders as are just and equitable in the circumstances.

In subsection 4 of section 7 of the Matrimonial Causes Act [*Chapter 5:13*], the Court is enjoined to have regard to all the circumstances of the case, including the following:

> "(a) the income-earning capacity, assets and other financial resources which each spouse and child has or is likely to have in the foreseeable future;
> (b) the financial needs, obligations and responsibilities which each spouse and child has or is likely to have in the foreseeable future;
> (c) the standard of living of the family, including the manner in which any child was being educated or trained or expected to be educated or trained;
> (d) the age and physical and mental condition of each spouse to the family and any other domestic duties;
> (e) the direct and indirect contribution made by each spouse to the family and any other domestic duties;
> (f) the value to either of the spouses or to any child of any benefit, including a pension or gratuity, which such spouse or child will lose as a result of the dissolution of the marriage;
> (g) the duration of the marriage; …"

The Act further directs that in distributing the assets, the court shall endeavor as far as is reasonable and practicable and, having regard to the conduct of the parties, where it is just to do so, place the spouses and child in the position they would have been in had a normal marriage relationship continued between the spouses.

Distribution of House Number 3B, Bluffhill, Harare

Evidence shows that the Bluffhill property was acquired during the subsistence of the marriage and registered solely in the defendant's name. The plaintiff testified that she contributed financially through a Barclays loan and purchase of building materials, while also providing indirect support as a caregiver to the children. The defendant initially asserted sole acquisition but later, on cross-examination, conceded that the plaintiff contributed directly and indirectly and ultimately agreed to a 50% share for the plaintiff. This concession, coupled with the plaintiff's evidence of contribution, supports the conclusion that the Bluffhill property is a matrimonial asset subject to equal division.

The Court notes that the defendant's evidence evolved under cross-examination, culminating in an express concession that the plaintiff is entitled to a fifty percent (50%) share in the Bluffhill property. Defendant sought to re-introduce a property that had already been shared during pre-trial conference. He testified that the Plaintiff should be awarded 50% of the Bluffhill property if he retains the Strathaven property. Rule 49 (10) (b) of the High Court Rules, 2021 provides that

" (10). Upon the conclusion of a pre-trial conference held before a judge, the

Judge –
(a)…….
(b) may make an order limiting the issues for trial to those not disposed of by admission or agreement; and
(c)….”

On the 30th of September 2025 an order was issued by a judge referring the matter to trial on the issues in the Joint PTC Minute that had been filed on the 29th of September 2025. As stated before, the issues referred to trial excluded the Strathaven property which had been dealt with in the PTC Minute. Paragraph 2 under Admissions Sought provides as follows

‘2. The parties hereby agreed that;

a) The Plaintiff is awarded Stand Number 15 Christ Church Gardens 945 Strathaven, Harare.

b) The Defendant is awarded Stand Number 5552 Platinum Prince, Zimre Park. Ruwa.”

It is clear that the fate of the Strathaven property was decided during pre-trial conference and it was not proper for the Defendant to seek to revisit the agreement reached as he testified. An extant order limited the issues for determination to be on the Bluffhill and the United Kingdom properties. Counsel for the defendant sought to qualify the concession on the 50-50 sharing of the Bluffhill property in closing submissions. The Court is guided by the principle that submissions cannot override or contradict the pleadings and sworn testimony of a party. The defendant’s acknowledgment of the plaintiff’s contributions, coupled with his agreement to share the Bluffhill property, is binding and consistent with the equitable distribution of matrimonial assets.

In line with the directive in Section 7 (e) and Section 7 (g) of the Matrimonial Causes Act [*Chapter 5:13*], the parties have been married for more than twenty years. It was not disputed that the plaintiff indeed made contributions towards the property. Plaintiff went to great lengths explaining her direct and indirect contributions towards the acquisition of the property. As stated in *Mufunami v Mufunami* HH32/16, the value of indirect contribution increases with the length of time. In *casu* the defendant demonstrated appreciation that the plaintiff is entitled to a 50% share in the Bluffhill property.

In *Usayi* v *Usayi* 2003 (1) ZLR 684 ZIYAMBI JA (as she then was) stated that one cannot place a monetary value on the indirect contribution made by a wife and mother who faithfully performed her duties as wife, mother, counsellor, domestic worker, housekeeper, day and night nurse for her husband and children during the duration of the marriage. Two

children were born out of this marriage. Apart from the indirect contribution by the plaintiff, she was also contributing financially to the welfare of the family. No evidence was adduced to show that the plaintiff was not contributing financially.

The court therefore accepts the plaintiff's submissions as being supported by the defendant's own testimony. The attempt by the defendant's counsel to redefine the issues at the stage of closing submissions is procedurally irregular and cannot displace the issues as referred to trial. The court accordingly finds that the plaintiff is entitled to a fifty percent (50%) share in the Bluffhill property, in addition to the agreed division of the other properties.

Distribution of House Number 34, Albourne Crescent, IP3 9 GD United Kingdom.

Regarding the United Kingdom property, the court finds that it was acquired during the subsistence of the marriage, thus it is a matrimonial asset. The defendant expressly disclaimed any interest in it, testifying that the plaintiff is the sole owner. While the legal title may have been handled by the plaintiff alone, the defendant's position under oath constitutes a formal waiver of any claim. Furthermore, the court accepts the plaintiff's uncontroverted evidence regarding the heavy financial encumbrances attached to the property. Consequently, in the exercise of its discretion under Section 7 (4) of the Matrimonial Causes Act, and to ensure a distribution that is just and equitable, the court awards the said property to the plaintiff, who shall also remain solely responsible for the mortgage and all ancillary obligations thereto.

Rentals from Stand Number 15, Strathaven, Harare

While ownership of Stand Number 15, Strathaven, Harare was agreed at pre-trial to vest in the plaintiff, the right to enjoy the fruits of ownership must be distinguished from mere entitlement in principle. The property is registered in Defendant's name. During the disputed period, the plaintiff was restrained by a peace order from contacting tenants and therefore could not exercise control over the property. The defendant, in turn, bore the responsibility of administering the premises and collecting rentals. Equity does not permit retrospective deprivation of benefits legitimately accrued to the party who managed the property during the interim. To award rentals from September 24, 2025, would unjustly penalize the defendant, who carried the burden of tenant relations, while simultaneously granting the plaintiff a benefit she was unable to realize in practice.

Accordingly, the court finds that the plaintiff's entitlement to rentals should commence from the date of this order, when her ownership crystallizes into effective

possession and control. This approach ensures fairness, avoids double recovery and provides legal certainty by fixing a clear and enforceable date for the commencement of her rights.

DISPOSITION

1. A decree of divorce be and is hereby granted.
2. The plaintiff be and is hereby awarded;

a. Flat Number 15, Christ Church Gardens, 945 Strathaven, Harare

b. House Number 34, Albourne Crescent, Ravenswood, Ipswich, IP3 9GD, United Kingdom, together with all rights and obligations attaching thereto.

3. The defendant be and is hereby awarded;

a. Stand Number 5552, Platinum Street, Zimre Park, Ruwa.

4. Each party be and is hereby awarded 50 % of the property known as Number 3B, Stand 1965, Bluffhill, Harare
5. The property will be valued by a valuer appointed by the parties within seven days of this judgement and the parties shall bear the cost of the valuation equally.
6. If the parties fail to agree on a valuer, one will be appointed by the Registrar of the High Court upon request by either party.
7. The property shall be sold by an estate agent agreed upon by the parties, failing such agreement (within ten working days) by one appointed by the Registrar of the High Court from his list of independent estate agents.
8. The net proceeds of the sale of the house shall be shared equally between the parties.
9. The Defendant shall sign all necessary documents to facilitate the transfer of Flat Number 15, Christ Church Gardens, 945 Strathaven, Harare into the Plaintiff's name failing which the Sheriff of Zimbabwe or his lawful deputy or assistant be and is hereby authorised and empowered to sign all the documents and perform all the acts and undertake any procedures necessary or required to effect transfer of the said property to the Plaintiff
10. The Plaintiff shall sign all necessary documents to facilitate the transfer of her half share in Stand Number 5552, Platinum Street, Zimre Park, Ruwa, failing which the Sheriff of Zimbabwe or his lawful deputy or assistant be and is hereby authorised and empowered to sign all the documents and perform all the acts and undertake any procedures necessary or required to effect transfer of the Plaintiff's share in the said property to the Defendant
11. Each party shall bear the cost of the transfer of title into his or her name.
12. The plaintiff shall be entitled to rentals accruing from Stand Number 15, Strathaven, Harare, with effect from the date of this judgment.

13. Each party bears its own costs.

Maxwell

Tarugarira Sande Attorneys, Plaintiff's Legal Practitioners
Mauwa And Associates, Defendant's Legal Practitioners.